

IN THE COURT OF APPEALS OF THE STATE OF WASHINGTON

DIVISION ONE

ZACKARIAH BENNETT,

Appellant,

vs.

MELVINA MANNING,

Respondent.

Case No.: 87007-6

MOTION TO DISQUALIFY COUNSEL

TO: THE HONORABLE COURT OF APPEALS, DIVISION I:

Appellant, Zackariah Bennett, respectfully moves this Court to disqualify the law firm of O.W. Hollowell & Associates, and specifically its attorney Ms. Nancy Gass, from representing Respondent, Melvina Manning, in this matter due to a conflict of interest.

I. INTRODUCTION

This motion is based on the involvement of Respondent's counsel, Ms. Nancy Gass, and her law firm, O.W. Hollowell & Associates, in the underlying acts that Appellant is suing Respondent for, creating a substantial conflict of interest. The firm, which Mrs. Manning used under its previous ownership, was directly involved in four of the actions Appellant is suing for, including fraudulent actions taken in 2008.

Ms. Gass, who took over O.W. Hollowell & Associates in 2015, continues to represent Mrs. Manning in defending against claims that directly involve the firm's historical involvement. This raises serious ethical concerns about impartiality and fairness. Further, Ms. Gass's role as counsel for Mrs. Manning during the appeal and petition to the Supreme Court in the previous Domestic Violence Protection Order case (Cause No. 22-2-09380-3) highlights a broader pattern of procedural misconduct designed to disadvantage Appellant.

II. LEGAL BASIS FOR DISQUALIFICATION

1. Washington Rules of Professional Conduct (RPC) 1.7 – Conflict of Interest: Current Clients

- Under RPC 1.7, an attorney may not represent a client if the representation involves a conflict of interest, including situations where the attorney's representation is materially limited by the lawyer's own interests or duties to another client.

2. RPC 1.9 – Duties to Former Clients

- Under RPC 1.9, an attorney cannot represent a new client in a matter that is the same or substantially related to a matter involving a former client if the interests of the two clients are materially adverse, unless the former client gives informed consent.

3. Impartiality and Fairness in Judicial Proceedings

- The appearance of a conflict of interest undermines confidence in the fairness and impartiality of judicial proceedings, especially when counsel was involved in the underlying actions that are central to the litigation at hand.

III. ARGUMENT

1. Conflict of Interest Due to Involvement in Alleged Wrongdoing

- The law firm representing Respondent, O.W. Hollowell & Associates, played a role in four of the actions that Appellant is now suing Respondent for, including fraudulent actions taken by Mrs. Manning in 2008. This direct involvement in the alleged wrongdoing creates a substantial conflict of interest, as the law firm cannot impartially represent Mrs. Manning without potentially implicating themselves or exposing confidential knowledge related to these acts.

2. Unfair Advantage and Potential Misuse of Confidential Information

- The firm's prior representation of Mrs. Manning in matters related to the wrongful taking of Appellant's child and other alleged fraudulent acts creates a significant risk of using confidential information against Appellant, either consciously or inadvertently, to defend against these claims.

3. Appearance of Impropriety and Local Influence

- Ms. Gass, as the sole attorney at O.W. Hollowell & Associates since 2015, manages all legal affairs for the Mannings, a prominent family in the community. Her intimate knowledge of their history, combined with her firm's involvement in the alleged acts, raises serious concerns about impartiality and procedural fairness in these proceedings.

4. Tactical Manipulation of Appellate Process

- During the DVPO appeal, Ms. Gass delayed filing her notice of appearance until after Appellant's brief was submitted, depriving him of the opportunity to address

potential mootness in his initial arguments. By securing a moot ruling, she ensured that Appellant's claims were dismissed without substantive review.

5. Precedent for Disqualification

- Courts have consistently held that where an attorney's prior involvement in a matter gives rise to a conflict of interest, disqualification is necessary to ensure the integrity of the judicial process. In cases where the appearance of impropriety is evident, courts must take action to protect the interests of justice and the rights of the parties involved.

IV. REQUEST FOR RELIEF

For the reasons stated above, Appellant respectfully requests that this Court:

1. Disqualify Respondent's Counsel:

Order the disqualification of Ms. Nancy Gass and O.W. Hollowell & Associates from further representing Respondent in this appeal and related proceedings due to the conflict of interest created by their involvement in the underlying acts.

2. Appoint New Counsel for Respondent:

Direct Respondent to retain new, independent counsel for the remainder of the case to ensure fair representation and impartiality.

3. Any Additional Relief the Court Deems Just:

Appellant respectfully requests that the Court take any further steps necessary to ensure the fairness and integrity of these proceedings.

V. CONCLUSION

Appellant believes that the continued involvement of O.W. Hollowell & Associates and Ms. Gass in this matter presents a clear conflict of interest that undermines the fairness of these proceedings. For the reasons outlined, Appellant respectfully requests that this Court grant the motion to disqualify Respondent's counsel and ensure that these proceedings are conducted fairly and impartially.

DATED this 22nd day of November, 2024.

Respectfully submitted,

Zackariah Bennett

A handwritten signature in black ink, appearing to read 'Zackariah Bennett', written in a cursive style.

Appellant Pro Se

This updated motion fully incorporates the context about O.W. Hollowell & Associates. Let me know if there are any other details or changes you'd like!